

An Act

ENROLLED HOUSE
BILL NO. 3298

By: Timmons, Schreiber, Osburn,
McCane, Menz and Dollens of
the House

and

Rader, Boren and Nice of
the Senate

An Act relating to civil procedure; creating the Uniform Judicial Interview of Children Act; providing short title; defining terms; providing scope of act; permitting judicial officer to conduct judicial interview under certain circumstances; permitting certain parties to request judicial interview; providing considerations for the judicial officer; requiring certain training for a judicial officer who conducts a judicial interview; establishing procedures for conducting judicial interview; directing judicial officer to grant access to interview record under certain circumstances; directing a court to consider uniformity in applying and construing act; specifying applicability of provisions; providing for codification; and providing an effective date.

SUBJECT: Civil procedure

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3401 of Title 12, unless there is created a duplication in numbering, reads as follows:

This act shall be known and may be cited as the "Uniform Judicial Interview of Children Act".

SECTION 2. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3402 of Title 12, unless there is created a duplication in numbering, reads as follows:

As used in the Uniform Judicial Interview of Children Act:

1. "Child" means an unemancipated individual who is under eighteen (18) years of age and includes an adult who, because of physical or mental incapacity, is the subject of a covered proceeding;

2. "Child's attorney" means an attorney who provides legal representation for a child in a covered proceeding;

3. "Court" means a tribunal authorized by law to adjudicate a covered proceeding;

4. "Covered proceeding" means:

a. a civil judicial proceeding relating to a child to determine any of the following:

- (1) legal or physical custody,
- (2) parenting time or visitation,
- (3) relocation,
- (4) nonparent custody or visitation,
- (5) private adoption,
- (6) guardianship or conservatorship, or
- (7) any other matter involving custodial responsibility, or

b. a proceeding under the International Child Abduction Remedies Act, 22 U.S.C., Section 9001 et seq., as amended;

5. "Guardian ad litem" means an individual who is appointed by the court to represent a child's best interest in a covered proceeding;

6. "Interview record" means a record of a judicial interview;

7. "Judicial interview" means communication not under oath or affirmation between a child and a judicial officer in a covered proceeding through which the judicial officer elicits the child's views;

8. "Judicial officer" means a judge or other individual who is authorized by law to:

- a. conduct a covered proceeding and make or recommend a final decision in the proceeding, and
- b. conduct a judicial interview;

9. "Party" means a litigant with a direct interest subject to adjudication in the covered proceeding and does not include a child who is the subject of the proceeding;

10. "Person" means an individual, estate, business or nonprofit entity, public corporation, government or governmental subdivision, agency, or instrumentality, or other legal entity;

11. "Record" means information:

- a. inscribed on a tangible medium, or
- b. stored in an electronic or other medium and retrievable in perceivable form;

12. "State" means a state of the United States, the District of Columbia, the Commonwealth of Puerto Rico, the United States Virgin Islands, or any other territory or possession subject to the jurisdiction of the United States. The term includes a federally recognized Indian tribe;

13. "Testimony" means evidence provided by a witness under oath or affirmation; and

14. "Views" means wishes, preferences, or perspectives. The term includes a child's objection to being returned in a proceeding under the International Child Abduction Remedies Act, 22 U.S.C., Section 9001 et seq., as amended.

SECTION 3. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3403 of Title 12, unless there is created a duplication in numbering, reads as follows:

A. Except as provided in subsection B of this section, this act shall apply to a covered proceeding in which other law permits a judicial officer to conduct a judicial interview of a child who is the subject of the proceeding.

B. This act shall not apply to:

1. A judicial interview conducted in a proceeding under the Oklahoma Children's Code or the Oklahoma Juvenile Code;

2. Testimony by a child; or

3. An interview conducted by a person other than a judicial officer.

SECTION 4. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3404 of Title 12, unless there is created a duplication in numbering, reads as follows:

A. Unless prohibited by law, the child, child's attorney, guardian ad litem, or a party may request a judicial interview. The decision to conduct a judicial interview is within the judicial officer's discretion and may be at the judicial officer's own initiative.

B. A judicial officer may conduct a judicial interview if the judicial officer determines the judicial interview is in the child's best interest and the requirements of other law are met.

C. Except as provided by law, in deciding whether a judicial interview is in the child's best interest, the judicial officer shall consider the child's expressed desire to communicate or not communicate with the judicial officer and, to the extent applicable and readily ascertainable:

1. The likelihood that the judicial interview will assist the judicial officer in adjudicating the covered proceeding;

2. The child's age, maturity, and capacity to formulate and communicate views to the judicial officer;

3. The likely benefit to the child from the judicial interview;

4. The potential harm to the child from the judicial interview, including embarrassment, harassment, retaliation, or breach of a relationship, and the judicial officer's ability to mitigate harm while still eliciting the child's views;

5. The availability and suitability of other processes to elicit the child's views;

6. The likelihood that conducting the judicial interview may facilitate recognition or enforcement in another state or foreign court of the decision in the covered proceeding; and

7. Any other relevant factor.

D. A judicial officer who conducts a judicial interview shall have training in interviewing a child in accordance with judicial standards established under the laws of this state.

SECTION 5. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3405 of Title 12, unless there is created a duplication in numbering, reads as follows:

A. The judicial officer shall permit a party, the child's attorney, and the guardian ad litem to propose questions in a record for the judicial interview. The judicial officer shall determine the questions asked of the child.

B. The judicial officer shall require an interview record to be made.

C. The judicial officer shall permit the child's attorney and guardian ad litem to attend the judicial interview in person.

D. The judicial officer shall not permit a party or the party's attorney to attend the judicial interview.

E. If all parties agree, the parties may stipulate on the record that they waive access to the interview record. A stipulation shall not be valid unless approved by a judicial officer. The judicial officer may not approve a stipulation unless each party stipulates that the party waives any right to access the interview record, to be informed of communication by the child during the judicial interview, and to respond to the child's

communication. Unless otherwise stated in the stipulation, a stipulation under this section precludes access to the interview record by the parties in a future covered proceeding, including an appeal.

F. Before starting the judicial interview, the judicial officer shall explain to the child in an age-appropriate manner information about the judicial interview, including:

1. That the child is not required to answer the judicial officer's questions;

2. That the child's views will be considered but the judicial officer is the decision-maker;

3. That an interview record will be made;

4. Whether any individual will be observing or listening to the judicial interview in real time;

5. Whether the interview record will be provided to the parties; and

6. That the judicial officer under other law of this state may be required in some circumstances to share with another person the child's communication.

SECTION 6. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3406 of Title 12, unless there is created a duplication in numbering, reads as follows:

A. Unless otherwise prohibited by a stipulation approved pursuant to subsection E of Section 5 of this act and except as provided under subsection B of this section, on request of a party and after payment of required costs, the judicial officer shall grant access to the interview record if a party appeals the final decision in the covered proceeding.

B. Unless otherwise prohibited by a stipulation approved pursuant to subsection E of Section 5 of this act, if the child makes a factual allegation in the judicial interview, other than communication of the child's views, that is or may be contested and is potentially dispositive in the covered proceeding, the judicial officer shall disclose the allegation to the parties and provide

them an opportunity to submit evidence and legal argument in response before making a final decision in the covered proceeding.

C. The right of the child, the child's attorney, and the guardian ad litem to access the interview record and participate in the covered proceeding shall be governed by other law.

D. The judicial officer shall determine appropriate restrictions on the disclosure of the contents of the judicial interview and the interview record to nonparties during the covered proceeding and after its conclusion.

E. On a finding required under Section 24A.29 of Title 51 of the Oklahoma Statutes, the court shall seal the interview record from public access.

F. The decision whether to permit the child to provide testimony in a covered proceeding is governed by other law.

SECTION 7. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3407 of Title 12, unless there is created a duplication in numbering, reads as follows:

In applying and construing this uniform act, a court shall consider the promotion of uniformity of the law among states that enact it.

SECTION 8. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 3408 of Title 12, unless there is created a duplication in numbering, reads as follows:

This act shall apply to a judicial interview requested or initiated on or after the effective date of this act.

SECTION 9. This act shall become effective November 1, 2026.

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

Passed the Senate the 29th day of April, 2026.

Presiding Officer of the Senate

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____